

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JUDITH RIFKIN,

Plaintiff,

v.

THE CITY OF NEW YORK; THE NYC POLICE
DEPARTMENT; SERGEANT DAVID SHIMSHI;
SERGEANT JESUS DELACRUZ; POLICE
OFFICER RANDY BALCACER; POLICE
OFFICER TIFFANY RODRIGUEZ; THE NEW
YORK CITY BOARD OF ELECTIONS; JANE
DOE; and POLICE OFFICERS JOHN DOES 1-4,
individually and in their official capacity (the name
Jane Doe and John Does 1-4 being fictitious, as the
true names are presently unknown),

Defendants.

Index No. _____

SUMMONS

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
The county in which the action arose
per CPLR §§ 503 and 504(3)

Plaintiff resides at:
315 West 70th Street
New York, NY 10023

[Index No. purchased on 2/4/2019]

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 4, 2019

Respectfully submitted,



By: _____
Victor F. Caldwell, Esq. (Reg. # 2894004)

Caldwell Litigation Group PLLC
33 West 19th Street, Fourth Floor
New York, NY 10011
(646) 499-2256
(646) 499-2257 (fax)
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Attorney for Judith Rifkin

TO:

— **THE CITY OF NEW YORK**
C/O CORPORATION COUNSEL OFFICE
100 Church Street
New York, New York 10007

— **THE NEW YORK CITY POLICE DEPARTMENT**
C/O CORPORATION COUNSEL OFFICE
100 Church Street
New York, New York 10007

— **SERGEANT DAVID SHIMSHI**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
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— **SERGEANT JESUS DELACRUZ**
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New York, NY 10007

— **POLICE OFFICER RANDY BALCACER**
C/O CORPORATION COUNSEL'S OFFICE
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New York, NY 10007

— **POLICE OFFICER TIFFANY RODRIGUEZ**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
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— **POLICE OFFICER JOHN DOE 1**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, NY 10007

— **POLICE OFFICER JOHN DOE 2**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, NY 10007

— **POLICE OFFICER JOHN DOE 3**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, NY 10007

____ **POLICE OFFICER JOHN DOE 4**
C/O CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, NY 10007

____ **BOARD OF ELECTIONS IN THE CITY OF NEW YORK**
Executive Office
32-42 Broadway, 7th Floor (Rector & Exchange)
New York, NY 10004

____ **JANE DOE 1 [POLLING SITE COORDINATOR, BOARD OF ELECTIONS]**
Executive Office
32-42 Broadway, 7th Floor (Rector & Exchange)
New York, NY 10004

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JUDITH RIFKIN,

Plaintiff,

v.

THE CITY OF NEW YORK; THE NEW YORK
CITY POLICE DEPARTMENT; SERGEANT
DAVID SHIMSHI; SERGEANT JESUS
DELACRUZ; POLICE OFFICER RANDY
BALCACER; POLICE OFFICER TIFFANY
RODRIGUEZ; THE NEW YORK CITY BOARD
OF ELECTIONS; JANE DOE; and POLICE
OFFICERS JOHN DOES 1-4, individually and in
their official capacity (the name Jane Doe and John
Does 1-4 being fictitious, as the true names are
presently unknown),

Defendants.

Index No. _____

VERIFIED COMPLAINT

JUDITH RIFKIN (“Rifkin” or “Plaintiff”), through her attorneys, Caldwell Litigation Group PLLC, bringing this action by way of Verified Complaint, alleges and says:

PRELIMINARY STATEMENT

1. Plaintiff **JUDITH RIFKIN** brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes against defendants, **SERGEANT DAVID SHIMSHI (“SHIMSHI”), AND SERGEANT JESUS DELACRUZ (“DELACRUZ”), POLICE OFFICER RANDY BALCACER (“BALCACER”)** (together, **“OFFICER DEFENDANTS”**); **POLICE OFFICER TIFFANY RODRIGUEZ (“RODRIGUEZ”); THE CITY OF NEW YORK, THE NEW YORK CITY POLICE**

DEPARTMENT (“NYPD”), THE NEW YORK CITY BOARD OF ELECTIONS
(hereinafter, “NYC BOE”), JANE DOE and POLICE OFFICERS JOHN DOES 1-4

(collectively, the “Defendants”), for violations of Plaintiff’s civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. This Court has personal jurisdiction over Defendants under New York Civil Practice Law and Rules (“CPLR”) §§ 301 and 302, and venue in New York County is proper under CPLR §§ 503 and 504(3) because all acts and incidents complained of herein arose in the County, City, and State of New York.

3. Plaintiff **JUDITH RIFKIN** was and is a resident of the City, State and County of New York.

4. That on November 7, 2017, and at all times herein mentioned, defendant **THE CITY OF NEW YORK** was and is a municipal corporation duly existing under and by virtue of the laws of the State of New York and was and is doing business in the State of New York.

5. At all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** maintains a Police Department pursuant to law.

6. That on November 7, 2017, and at all times herein mentioned, Defendant **NYPD** was, and still is, a municipal agency and is a statutory entity existing pursuant to the laws of the State of New York.

7. That at all times hereinafter mentioned, defendant **BALCACER** was an employee of the New York City Police Department, acting in his capacity as a transit police officer, and under color of law.

8. That at all times hereinafter mentioned, defendant **SHIMSHI** was an employee of the New York City Police Department, acting in his capacity as a police sergeant, and under color of law.

9. That at all times hereinafter mentioned, defendant **DELACRUZ** was an employee of the New York City Police Department, acting in his capacity as a police sergeant, and under color of law.

10. That at all times hereinafter mentioned, defendant **RODGRIGUEZ** was an employee of the New York City Police Department, acting in her capacity as a police officer, and under color of law.

11. That at all times hereinafter mentioned, defendants **JOHN DOES 1-4** were employees of the New York City Police Department, acting in their capacity as police officers, and under color of law.

12. That at all times herein mentioned, defendant **NYPD** was, and still is a department within the City of New York and employed **SHIMSHI; DELACRUZ, BALCACER, RODGRIGUEZ and JOHN DOES 1-4 (together, "individual defendants.")**

13. That on November 7, 2017, and at all times herein mentioned, Defendant **NYC BOE** was charged under the laws of the State of New York with the administration of elections in the City of New York; and more particularly, with the administration of the Election held on November 7, 2017, including rendering assistance to voters who appeared on November 7, 2017, at PS 199, located at 270 West 70th Street, in Manhattan (hereinafter, "Polling Site"), to exercise their constitutional right to vote. The **NYC BOE** is an administrative body of ten Commissioners, two from each borough upon recommendation by both political parties and then appointed by the New York City Council for a term of four years.

14. That at all times hereinafter mentioned, defendant **JANE DOE** was an employee or volunteer of the **NYC BOE**, acting as its agent and under color of law, and was the official Coordinator at the Polling Site on November 7, 2017.

15. On January 30, 2018, Plaintiff's Notice of Claim was duly served upon the Defendants, through the Office of the Comptroller, in full compliance with General Municipal Law Section 50-e.

16. The aforesaid Notice of Claim was filed within ninety (90) days after the causes of action accrued.

17. That 30 days have elapsed since service of the Notice of Claim and the Defendants have refused and/or neglected to adjust, settle and pay the claim.

18. That plaintiff appeared for a hearing pursuant to §50-h of the General Municipal Law on July 5, 2018, and the matter was recorded as Claim #: 2018PI003188.

19. That this claim has been commenced and this action has been filed within one year and ninety days after the accrual of the federal and state law violations upon which the claim is based.

20. That this cause of action falls within one or more of the exceptions set forth in CPLR § 1602.

21. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that Defendants owed the Plaintiff a non-delegable duty of care and by reason of the fact that Defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

22. Pursuant to CPLR Section 1602(7), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard of the safety of others.

23. Plaintiff has been damaged by a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, in an amount to be determined at trial.

STATEMENT OF FACTS

24. On Election Day, November 7, 2017, between 8:30-9:00 a.m., Plaintiff sought to exercise her constitutional right to vote at her Polling Site of 35 years which she was entitled to do without penalty, interference or discouragement.

25. Before casting her vote, Plaintiff stopped at a desk near the Polling Site entrance to jot down on a piece of paper the names of the judicial candidates who appeared on the ballot.

26. A woman identified with a name tag as the Polling Site's "Coordinator," an agent or employee of the **NYC BOE**, walked over to Plaintiff and asked what she was doing. Plaintiff informed the **BOE Coordinator** (hereinafter also referred to as "**JANE DOE**" or "**BOE Coordinator**") that plaintiff had written down the names of the judicial candidates. The **NYC BOE Coordinator** then stated, "I don't think you can do that," and then walked across the room to ask her colleague seated at another table for instruction.

27. Plaintiff then cast her vote at the electronic voting scanner and followed the **BOE Coordinator** to the table.

28. **BALCACER** then followed the Plaintiff as well.

29. The **NYC BOE Coordinator** asked her colleague if she knew whether the names of the judicial candidates could be written down and the colleague shrugged, indicating she did not know. The **BOE Coordinator** responded, “this was the last thing they taught us.”

30. Then the **NYC BOE Coordinator** telephoned someone and stated that a voter was “taking information from the ballot.” When she hung up, she continued to insist that Plaintiff, “can’t have that information.”

31. Plaintiff then responded that there was nothing illegal in writing down the names of the candidates from the ballots. Plaintiff did not photograph ballots or any other BOE property; nor did she remove ballots from the premises, or otherwise copy or seize ballot materials.

32. As Plaintiff continued to discuss the matter with the **NYC BOE Coordinator**, Defendant **BALCACER** suddenly lunged at Plaintiff, violently wrestling her arms into handcuffs. Plaintiff yelled and pleaded, “you’re hurting me,” “please stop.”

33. **BALCACER** patted Plaintiff down and conducted a search through her pockets without her consent. He seized the piece of paper on which Plaintiff had written notes and tossed it on the Coordinator’s table. No one looked at the paper, nor was it returned to Plaintiff. **BALACER** then forced Plaintiff to sit at the **NYC BOE Coordinator’s** table and pulled Plaintiff’s hood off her head.

34. Shortly thereafter, other police officers arrived, herein referred to as **JOHN DOES 1-4**, and, along with the **OFFICER DEFENDANTS**, surrounded Plaintiff.

35. Two police officers walked over to the table to inspect the poll book and then asked Plaintiff if she was “Judith Rifkin at 315 West 70th Street.” Plaintiff nodded.

36. Plaintiff asked what she had done wrong. One of the **OFFICER DEFENDANTS** said, “disorderly conduct” and another **OFFICER DEFENDANT** told Plaintiff she was “interfering with a poll worker.” After another 10 minutes, Plaintiff asked again what she had done wrong, and **SHIMSHI** responded, “I’ve been doing this for 30 years, you know what you did.” He did not elaborate or describe the crime or violation for which Plaintiff was being arrested.

37. Plaintiff remained detained in handcuffs at the Polling Site without explanation for at least 20 minutes.

38. One of the **OFFICER DEFENDANTS** eventually informed Plaintiff that Emergency Medical Services (“EMS”) would be coming, that “it’s the procedure when there’s an incident at a polling place.” He told Plaintiff that the officers would take Plaintiff to a hospital and that Plaintiff could “take a taxi home from there.” Plaintiff informed the **OFFICER DEFENDANTS** that she had left her home with nothing in her pockets except tissues -- no money, no credit cards, no phone.

39. One of the **OFFICER DEFENDANTS** then told Plaintiff that if she returned to the Polling Site, she would be arrested.

40. On information and belief, **OFFICER DEFENDANTS** detained, arrested and forcibly removed Plaintiff from the Polling Site to a hospital for “psychiatric evaluation,” under color of law, and as agents/employees of the NYPD, without due cause and against her will.

41. On information and belief, **JOHN DOES 1-4** assisted **OFFICER DEFENDANTS** in unlawfully and improperly detaining, arresting and forcibly removing Plaintiff to a hospital, under color of law and when acting as agents, servants and/or employees of Defendant **NYPD**.

42. At no time herein did Plaintiff engage in any action which would justify the aforementioned conduct by **OFFICER DEFENDANTS** or **JOHN DOES 1-4**.

43. **OFFICER DEFENDANTS** led Plaintiff to the EMS van, instructed her to enter the van through the rear, and take a seat on right side with young female officer seated to Plaintiff's right, and rear doors were closed.

44. Another male officer sat in the back of the van and the side door remained open. A large fan opposite Plaintiff was blowing on Plaintiff's face, so she instinctively slid her hand out of the loosely secured cuff and put her hood back over her head and began to return her wrist to the cuff. The female officer seated next to Plaintiff observed that Plaintiff's hand was momentarily out of the cuff, smiled in surprise and leaned out the opened side door to her right to speak to other officers standing outside the van. On information and belief, **OFFICER DEFENDANTS** then leapt into the van, and surrounded Plaintiff, forcing her head down. **SHIMSHI**, threw his body over Plaintiff's back, forcing her head between her knees. Plaintiff screamed that they were hurting her arms and back and **SHIMSHI** barked, "I'll break your arms if I have to." The weight of his body was on Plaintiff's back and his gun, in its holster, dug into Plaintiff's head. Plaintiff again screamed that the officers were hurting her and she was ignored.

45. Plaintiff's arms and head bore bruises a week later. Plaintiff is 5 feet, 5 inches in height, was 60 years old, and weighed 115 pounds.

46. The EMS van was driven to Roosevelt Hospital, now known as Mount Sinai West, on 59th street. Plaintiff was led out the back door of the van and into the emergency room through a back door where, still cuffed, a nurse took her temperature and blood pressure. Then **OFFICER DEFENDANTS** led Plaintiff down a corridor and into an area behind a locked door

adjacent to the ER lobby entry desk. Plaintiff asked what was happening and an **OFFICER DEFENDANT** said, “you’ll see a doctor and be on your way.”

47. Plaintiff stood in the hallway by the seating area. One of the **OFFICER DEFENDANTS** removed the handcuffs and required Plaintiff to remove her jacket and put it in a hospital bag “for security.” Another **OFFICER DEFENDANT** pointed to a door and said, “the doctor is in there,” the door opened briefly, and a doctor said, “you’ll be here for hours.” The **OFFICER DEFENDANTS** then left Plaintiff in that locked room for approximately three (3) hours.

48. Three hours later, Plaintiff was finally released, over 4 hours after the incident began.

49. An Aided Report (hereinafter, “Report”) was drafted by Police Officer Tiffany M. Rodriguez (“**RODRIGUEZ**”) on November 7, 2016 at 9:45 a.m. The Report stated that Plaintiff was transported to 7247 St. Luke’s Roosevelt Hospital Center by NYS Registered Ambulance. It stated that, “[a]bove aided did break the rules for board of elections while at polling site. Aided was asked to leave by staff and became irate and was cursing and screaming, prompting **BALCACER** from transit to intervene. Aided continued to act disorderly and **BALCACER** did handcuff aided. Aided removed to hospital for evaluation.”

50. **RODRIGUEZ** falsely stated in the Report that Plaintiff was “emotionally disturbed.”

51. **RODRIGUEZ** also made false statements in the Report in that: (1) Plaintiff did not break the rules of the BOE; (2) Plaintiff was not asked to leave by the staff; (3) Plaintiff was not irate; (4) Plaintiff was not “cursing”; and (5) Plaintiff did not act “disorderly.”

52. The Report and the medical record created by the false and improper arrest are a permanent part of Plaintiff's record, and the false statements therein cause reputational and other harm to Plaintiff.

53. Plaintiff was never charged with any crime or violation.

54. Plaintiff filed a complaint with the Civilian Complaint Review Board on November 13, 2017.

55. On October 9, 2018, the CCRB concluded, among other things, that "following a thorough and impartial investigation," that Plaintiff's claim of "abuse of Authority" by **DELACRUZ** and **SHIMSHI** in forcibly removing her to the hospital were substantiated and recommended "formalized training" for both officers.

56. As a result of her false arrest, instigated by the acts of the **NYC BOE Coordinator**, who was acting under color of law and as an agent and/or employee of the **NYC BOE**, and detainment, Plaintiff was caused to sustain physical injuries the full extent of which is currently unknown as well as mental anguish and other psychological injuries, fear, anxiety, shame, humiliation and an indignity.

57. As a result of the foregoing, Plaintiff suffered the effects of these injuries and humiliations which will be permanent; and as a result of said injuries, plaintiff has been caused to incur and will continue to incur expenses for medical care and attention, and, as a further result, plaintiff was and will continue to be rendered unable to perform plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

FIRST CLAIM FOR RELIEF:
NEGLIGENCE

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

59. Defendants owed a duty to Plaintiff to not cause the injuries herein complained of.

60. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

61. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, and humiliation.

SECOND CLAIM FOR RELIEF:
NEGLIGENT HIRING, RETENTION, AND TRAINING

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

63. Both **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT**, and the **NYC BOARD OF ELECTIONS** have a duty to use reasonable care in the employment, training and supervision of its employees, volunteers and agents.

64. This includes a duty to investigate and find out whether employees are competent to do work without causing or contributing to the danger or harm to others.

65. The **CITY OF NEW YORK** knew or should have known that defendants **DELACRUZ, SHIMSHI and BALCACER**, as well as **JOHN DOES 1-4** (the unidentified

officers of the **NYPD** present on the scene) were incompetent, have a vicious propensity, and/or have a bad disposition.

66. The **NYC BOE** knew or should have known that its **NYC BOE Coordinator** was incompetent with respect to Polling Site rules and was inclined to unnecessarily escalate voter issues in a manner that would result in **NYPD** involvement and/or infringement of the rights of voters.

67. The **CITY OF NEW YORK**, the **NYPD** and the **NYC BOE** could have easily anticipated the incident of November 7, 2017.

68. The **CITY OF NEW YORK** and the **NYPD** failed to adequately investigate and correct the disposition and propensity issues of defendants **DELACRUZ**, **SHIMSHI** and **BALCACER** and **JOHN DOES 1-4**, and the **NYC BOE** failed to investigate and correct the incompetency issues of the **NYC BOE Coordinator** at the Polling Site.

69. Because of this history, the incident of November 7, 2017, was a foreseeable consequence of the **NYC BOE**, **CITY OF NEW YORK** and **NYPD'S** failure to adequately train, reprimand, or re-assign defendants.

70. Because of the **NYC BOE**, **CITY OF NEW YORK** and the **NYPD's** failure to take appropriate action, plaintiff has suffered the injuries claimed herein.

THIRD CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. SEC. 1983

71. Plaintiff repeats reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. At the time of plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime.

73. All of the aforementioned acts of the Defendants **CITY OF NEW YORK, NYC BOE, the NYPD and the individual defendants** and their agents, servants, and employees, were carried out under the color of state law.

74. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

75. The acts complained of were carried out by the aforementioned **OFFICER DEFENDANTS and JOHN DOES 1-4** of the **NYPD** present on the scene, in their capacities as sergeants and police officers, with all of the actual and/or apparent authority attendant thereto.

76. The acts complained of were carried out by the aforementioned **OFFICER DEFENDANTS and JOHN DOES 1-4** in their capacities as sergeants and police officers, pursuant to their customs, usages, practices, procedures, and the rules of the **CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**, all under supervision of ranking officers of said department.

77. The **individual defendants**, and defendant **CITY OF NEW YORK**, collectively and individually, while acting under color of state law, engaged in Constitutionally violative conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

78. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983

79. Plaintiff repeats reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

80. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the **NEW YORK POLICE DEPARTMENT** and **CITY OF NEW YORK**.

81. As a result of the aforesaid conduct by Defendants, Plaintiff was subjected to illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

82. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

83. As a result of defendants' impermissible conduct, Plaintiff demands judgment against defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF:
EXCESSIVE USE OF FORCE

84. Plaintiff repeats reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

85. Plaintiff was injured as a result of the excessive force used by Defendants **SHIMSHI, DELACRUZ** and **BALCACER** while acting under color of law and in the course of their employment with the **NYPD**.

86. Defendants were negligent, careless, reckless and grossly negligent in the manner in which they came into contact with Plaintiff, causing Plaintiff unjustifiable harm.

87. As a result of the aforesaid, Plaintiff seeks damages for negligence, carelessness, reckless and gross negligence in an amount to be determined at trial.

SIXTH CLAIM FOR RELIEF:
WRONGFUL DETAINMENT

88. Plaintiff repeats reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

89. As a result of the actions of the defendants herein, Plaintiff was detained by defendants **SHIMSHI, DELACRUZ** and **BALCACER** without probable cause or justification.

90. As a result of the aforesaid, Plaintiff seeks damages in an amount to be determined at trial.

91. As a direct and proximate result of Defendants' acts, Plaintiff has suffered and will continue to suffer direct monetary damage, and other compensable damages.

SEVENTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT

92. Plaintiff repeats reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

93. As a result of the actions of the defendants herein, Plaintiff was falsely imprisoned by **OFFICER DEFENDANTS** against her will when she was placed in a locked hospital room for hours.

94. The **OFFICER DEFENDANT'S** detention of Plaintiff was willful, unlawful, without Plaintiff's consent, and physical force had been used to take Plaintiff to the place of confinement.

95. As a result of the aforesaid, Plaintiff seeks damages in an amount to be determined at trial.

96. As a direct and proximate result of Defendants' acts, Plaintiff has suffered and will continue to suffer direct monetary damage, and other compensable damages.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff **JUDITH RIFKIN** demands the following relief jointly and severally against all of the defendants:

- a) Compensatory damages, in an amount to be determined at trial;
- b) Punitive damages, in an amount to be determined at trial;
- c) The convening and empaneling of a jury to consider the merits of the claims herein;
- d) Costs and interests and attorney's fees;
- e) Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
February 4, 2019

Respectfully submitted,

CALDWELL LITIGATION GROUP PLLC

By:



Victor F. Caldwell, Esq. (Reg. # 2894004)

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Attorney for Judith Rifkin

VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF NEW YORK)

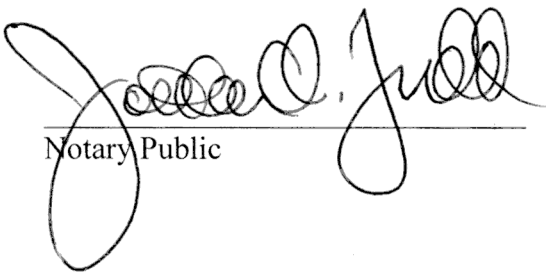
JUDITH RIFKIN, being duly sworn, deposes and says:

I am the plaintiff in the above entitled action; I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

This, and the papers on which it is based, are certified pursuant to section 130-1.1(a) of the Rules of the Chief Administrator (22 NYCRR).


JUDITH RIFKIN

Sworn to before me this
4th day of February 2019


Notary Public

JONATHAN A. JUDD
Notary Public, State of New York
Registration No. 02JU6178570
Qualified in New York County
My Commission Expires Dec. 3, 2019